

HOUSE No. 3816**The Commonwealth of Massachusetts**

PRESENTED BY:

Steven George Xiarhos and Jessica Ann Giannino*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the "Move Over Law".

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/17/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/25/2025</i>
<i>Kenneth P. Sweezey</i>	<i>6th Plymouth</i>	<i>4/28/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>4/30/2025</i>
<i>Jeffrey Rosario Turco</i>	<i>19th Suffolk</i>	<i>5/10/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>5/10/2025</i>
<i>Marc T. Lombardo</i>	<i>22nd Middlesex</i>	<i>5/10/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>5/10/2025</i>
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>5/15/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>5/15/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>5/15/2025</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>5/15/2025</i>
<i>Michael S. Chaisson</i>	<i>1st Bristol</i>	<i>5/15/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>5/20/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>5/20/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>5/20/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>5/20/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>6/4/2025</i>

<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>6/25/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>7/31/2025</i>

HOUSE No. 3816

By Representatives Xiarhos of Barnstable and Giannino of Revere, a petition (accompanied by bill, House, No. 3816) of Steven George Xiarhos relative to the move over law, so-called. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3479 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the "Move Over Law".

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 90 of the General Laws is hereby amended by inserting
2 after line 663, as appearing in the 2020 Official Edition, the following paragraph:-

3 The registrar shall furnish without charge to the owner of a private passenger motor
4 vehicle who is a parent, sibling, child, or spouse of a police officer of a police department of any
5 city or town, the department of state police, the Massachusetts bay transportation authority police
6 department, or police officer of a Massachusetts public higher education campus, who has been
7 killed in the line of duty, upon presentation of satisfactory evidence to the registrar, a distinctive
8 registration plate that reads "Blue Star Family" for 1 private passenger motor vehicle owned and
9 principally used by that person or a distinctive "Blue Star Family" emblem to be affixed to a
10 registration plate for a motorcycle privately owned and principally used by that person. The

11 registrar may issue a distinctive "Blue Star Family" registration of up to 6 characters for 1 private
12 passenger motor vehicle owned and principally used by that person. A police officer shall be
13 determined to have been killed in the line of duty for purposes of this paragraph if the
14 circumstance meets those which would make them eligible to be placed on the National Law
15 Enforcement Memorial in Washington D.C.

16 SECTION 2. Section 7C of chapter 89 of the General Laws, as appearing in the 2020
17 Official Edition, is hereby amended by striking out subsection 2(c) in its entirety and inserting in
18 place thereof:-

19 (c) Violation of this section may be punished by a fine of \$250 for a first offense, by a
20 fine of \$500 for a second offense, and by a fine of \$1,000 for a third or subsequent offense;
21 provided that any violation that results in injury to another person may be punished by a fine of
22 \$2,500 or up to one year in jail or house of correction.

23 And further, by adding the following sections:-

24 (d) In addition to any fines pursuant to subsection (c), an operator who commits a second
25 or third offense shall be required to complete a program selected by the registrar of motor
26 vehicles that encourages a change in driver behavior and attitude about the "Move Over Law".

27 (e) A first or second offense under this section shall not be a surchargeable incident under
28 section 113B of chapter 175 or under motor vehicle liability policy as defined in section 34A that
29 is issued pursuant to said chapter 175; provided, however, that a third or subsequent offense shall
30 be a surchargeable incident under said section 113B of said chapter 175 or under a motor vehicle
31 liability policy as defined in said section 34A that is issued pursuant to said chapter 175.

(f) Notwithstanding any general or special law to the contrary, upon receipt of the payment of fines issued under this section, the state comptroller shall immediately cause not less than 50% of the total to be transferred to registry of motor vehicles to be held as retained revenue, provided said revenue shall be used to defray the 100 per cent of the annual cost associated with section 1 of this act, and further, the remaining balance shall be transferred to the state treasurer to supplement costs associated with section 3 of this act.

SECTION 3. Chapter 10 of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by inserting after section 35PPP the following section:-

Section 35QQQ. There shall be established and set up on the books of the Commonwealth a separate fund to be known as the Massachusetts Law Enforcement Memorial Fund to be used without appropriation by a department of public safety for the purpose of making annual payments to the Massachusetts Law Enforcement Memorial to memorialize and honor Massachusetts law enforcement personnel killed in the line of duty. There shall be credited to the fund revenues received by the Commonwealth from the sale of registration plates under section 2G of chapter 90.

SECTION 4. Section 18¾ of chapter 6A of the General Laws, as appearing in the 2008 Official Edition, is hereby amended by adding the following clause:-

(10) to develop and implement a statewide blue alert system to be activated when law enforcement officials are searching for an individual who is wanted in the serious injury or killing of a police officer, state trooper, or other law enforcement official.

SECTION 5. Chapter 6A of the General Laws, as appearing in the 2008 Official Edition, is hereby amended by inserting after section 19A the following section:-

54 Section 19B. The executive office of public safety shall coordinate the implementation of
55 a statewide blue alert system, pursuant to section 21 of chapter 22.

56 SECTION 6. Chapter 22 of The General Laws are hereby amended by adding the
57 following section:-

58 Section 21. THE STATEWIDE BLUE ALERT SYSTEM

59 Section 1. The following terms as used in this chapter shall, unless the context clearly
60 appears otherwise, have the following meanings:

61 “Executive office”, the executive office of public safety.

62 "Law enforcement agency", a law enforcement agency with jurisdiction over the
63 investigation of a crime resulting in the serious injury or death of a police officer, state trooper,
64 or other law enforcement official.